

#	Case Name	Tentative
50	Fields vs. First American Title Insurance Company (FATIC) 25-01463801	Motion to Strike Complaint CONTINUED TO 8/21/2026 AT 10:00 AM IN DEPARTMENT C16. MINUTE ORDER HAS BEEN ISSUED.
51	Gamarra vs. Kia America, Inc. 25-01524918	Motion to Strike Portions Of Complaint MOOT – OFF CALENDAR
53	PolSELLI vs. Jaguar Land Rover North America, LLC 25-01513594	1. Demurrer to Complaint 2. Motion to Strike Complaint Defendants Jaguar Land Rover North America, LLC and Jaguar Land Rover Newport Beach’s demurrer to the Complaint is OVERRULED. Defendants’ motion to strike is DENIED. <u>Meet and Confer</u> As an initial matter, the Court notes Defendants did not satisfy Code of Civil Procedure sections 430.41, subdivision (a), and 435.5, subdivision (a), which require the parties to meet and confer in person, by telephone, or, as to the demurrer, by video conference. The Court notes the deficiency but reaches the merits of the demurrer and motion to strike. <u>Demurrer</u> Defendants Jaguar Land Rover North America, LLC (“Manufacturer”) and Jaguar Landrover Newport Beach (“Repair Facility”) (collectively, “Defendants”) demur to Plaintiff’s sixth cause of action for fraudulent inducement/concealment against Manufacturer and fifth cause of action for negligent repair against Repair Facility. <i>a. Fraudulent Inducement – Concealment</i> <i>i. Duty to Disclose</i> Defendants argue the fraud claim fails because the Complaint fails to allege facts demonstrating that Manufacturer had a duty to disclose material facts to Plaintiff. “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)...Circumstances (3), (4), and (5) presuppose a preexisting